POLICY

Generative Artificial Intelligence in Education

Approved by: Chief Product and Quality Officer
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1. Purpose

1.1 This policy provides guidance to staff and learners on the responsible and ethical use of generative artificial intelligence (GenAI) technology at TAFE NSW for the purposes of teaching, learning, scholarly practice and assessment. Through this policy, TAFE NSW acknowledges and leverages the benefits of GenAI while mitigating the risks it poses.

2. Scope

2.1 This policy applies to all TAFE NSW staff, its partners and contractors engaged in course development and all learners in Higher Education qualifications, Vocational Education and Training (VET) programs, non-award programs and English language programs.

3. Definitions

Term	Definition
Academic Integrity	Academic integrity means acting with the values of honesty, trust, fairness, respect and responsibility in all academic endeavours.
Academic Integrity Breach	Learner conduct that seeks to gain assessment credit such as marks for work not done fairly and honestly. This can be in connection to either an exam, test, or other supervised assessment, or the unsupervised preparation of any assessed piece of work.
Academic Misconduct	A formal offence where an academic integrity breach is founded. Types of academic misconduct include academic fraud, cheating, contract cheating, collusion, facilitating academic misconduct/file sharing and plagiarism, unauthorised or undeclared use of GenAI.
Artificial intelligence (AI)	Systems that display intelligent behaviour by analysing their environment and taking actions – with some degree of autonomy – to achieve specific goals.
Generative Artificial Intelligence Literacy Skills	A set of competencies that allows users to critically evaluate AI technology, communicate and work with AI in an effective manner, and use AI as a tool in the workplace and at home
Generative Artificial Intelligence Technology (GenAI)	A wide-ranging term that refers to any form of artificial intelligence capable of generating new content, including text, images, video, audio, or code.

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Term	Definition
Program of Study	A set combination of core and/or elective subjects/units leading to Higher Education and VET awards and non-award courses.
Subject/Unit	A self-contained unit of study or competency in any course or program offered at, or in conjunction with, TAFE NSW.

4. Policy

4.1 TAFE NSW supports the responsible and ethical use of GenAI technology by its staff and learners in teaching, learning, scholarly practice and assessment practices to enrich learning and teaching.

4.2 TAFE NSW recognises and aligns its practices to the NSW Government Mandatory Ethical Principles for the Use of Artificial Intelligence as part of the NSW Government AI Assurance Framework. These principles are as follows:

a. Community Benefit – GenAI technology should only be used when it is the most appropriate solution that: maximises positive outcomes for individuals, community and government; aligns with government priorities; and respects human rights, diversity, and the autonomy of individuals.

b. Fairness – Users of GenAI technology must include safeguards to manage data bias and data quality, be inclusive and accessible and should not involve or result in unfair discrimination against individuals, communities or groups. TAFE NSW ensures equitable access to GenAI tools across diverse cohorts of learners both in terms of skills and access.

c. Privacy and Security – GenAI technology must be used safely and securely, and in a way that is consistent with privacy, data sharing and information access requirements.

d. Transparency – Use of GenAI technology must include transparent and responsible disclosure. Users must acknowledge where and how they have used Gen AI such that it can be understood, evaluated, questioned or challenged by those impacted.

e. Accountability – GenAI-based functions must be subject to human oversight, intervention and review. Decision-making remains the responsibility of organisations and individuals. Organisations should dedicate the right expertise to manage and be accountable for the outcomes.

4.3 All TAFE NSW staff and learners are required to uphold Australia's Artificial Intelligence Ethics Principles in all cases where GenAI is used, including in teaching, learning, scholarly activity and assessment practices.

4.4 All use of GenAI at TAFE NSW must comply with all applicable NSW and Australian laws and regulations, along with those of the user's applicable jurisdiction (if outside NSW and/or Australia).

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5. Responsible and Appropriate Use

5.1 GenAI technology may be used by TAFE NSW to support teaching, learning and development of course materials, including learning and assessment materials. Professional development opportunities are provided to staff to develop GenAI literacy skills where required.

5.2 Use of GenAI technology by learners in assessment is only permitted if outlined in the relevant assessment instructions for the subject/unit. Unauthorised or undeclared use of GenAI in assessment constitutes academic misconduct and is dealt with in accordance with the Academic Integrity Policy.

5.3 Where GenAI is permitted for use in assessment instructions, TAFE NSW upholds the integrity of assessment to ensure that students achieve the learning outcomes.

5.4 All users of GenAI at, or on behalf of, TAFE NSW must:

a. Engage with GenAI technology in a manner that is judicious and productive;
b. Understand GenAI's inherent limitations and uncertainties and must critically evaluate the credibility of any generated content against trusted sources and evidence, addressing any errors, inconsistencies, or biases;
c. Respect and uphold privacy and data protection principles to ensure the security of data, prevent data leakage, and avoid unnecessary data collection;
d. Only use TAFE NSW email addresses, credentials or IP to engage with GenAI technologies that have been endorsed by TAFE NSW Systems Group. Use of unendorsed technologies for TAFE NSW purposes without express consent is not permitted. Granting of exceptions to this condition will be dealt with under the *TAFE NSW Acceptable Use of Information and Technology Policy* and the *TAFE NSW Information Security Policy*;
e. Not submit TAFE NSW sensitive information to any GenAI technology, whether endorsed or not (refer to the *TAFE NSW Sensitive information labelling and handling procedure*);
f. Use GenAI technology in ways that enable diverse ideas and perspectives while avoiding the reinforcement of biases;
g. Be aware of and take measures to maintain the Intellectual Property (IP) rights of TAFE NSW and its partners, and comply with applicable copyright rights and obligations;
h. Acknowledge and correctly reference their use of GenAI technology.

5.5 Use of GenAI technology by TAFE NSW staff for TAFE NSW purposes must comply with all other relevant TAFE NSW policies and procedures, including the *TAFE NSW Acceptable Use of Information and Technology Policy* and *TAFE NSW Information Security Policy*.

5.6 TAFE NSW staff who fail to comply with this policy may face disciplinary action in accordance with the *TAFE NSW Acceptable Use of Information and Technology Policy* and *TAFE NSW Staff Code of Conduct*.

5.7 TAFE NSW learners who use GenAI technology contrary to assessment instructions or this policy may be subject to investigation in accordance with the *TAFE NSW Academic Integrity Policy*, *TAFE NSW Acceptable Use of Information and Technology Policy* and *Student Conduct and Discipline Policy*.

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6. Course Design, Delivery and Assessment

6.1 Responsible use of GenAI is considered in all programs of study at TAFE NSW where GenAI is used and/or expected in teaching and learning.

6.2 GenAI technology is used at TAFE NSW in ways that support and enhance critical thinking and creativity, rather than restrict human thought and experience or negatively impact learning. It is embedded into learning to develop GenAI literacy skills and to prepare learners for emerging innovations of AI within industry.

6.3 Where GenAI technology is used in course content creation, users must:

a. Critically evaluate the credibility and accuracy of generated content against trusted sources and evidence, addressing any errors, inconsistencies, or biases;

b. Appropriately acknowledge the use of Gen AI within the course content.

6.4 Where GenAI technology is intended to be used in teaching delivery or learning, TAFE NSW ensures that learners are supported to use the technology in accordance with this policy.

7. Reporting and Monitoring

7.1 TAFE NSW has a clear governance framework that ensures a coordinated response to the challenges, risks and opportunities presented by GenAI.

7.2 TAFE NSW ensures the systematic review of GenAI practices as part of its Self-Assurance Model.

8. Responsibilities

Position	Responsibility
Chief Product & Quality Officer	The Chief Product & Quality Officer is the co-owner of this policy and has delegated authority to make amendments to this policy in consultation with the Chief Information Officer.
Chief Information Officer	The Chief Information Officer is the co-owner of this policy and has delegated authority to make amendments to this policy in consultation with the Chief Product Officer.
Director Educational Quality	The Director Educational Quality is the contact for this policy and has overall responsibility for the effective administration and implementation of this policy.
Education Self-Assurance Sub-Committee	The Education Self-Assurance Committee is responsible for monitoring academic quality and standards across all courses at TAFE NSW, including the impact of GenAI.
Learning and Assessment Designers	Learning and Assessment Designers are responsible for incorporating GenAI literacy into the design and development of course materials and responsible use of GenAI in developing those materials.
Chief Delivery Officer	The CDO is responsible for monitoring and reporting the impact of Gen AI on teaching and learning practices and learning outcomes.
Teacher Engagement Network (TEN) and Skills Excellence Network (SEN)	The responsibilities of the CDO as above may be delegated to the TEN/SEN as required.

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Position	Responsibility
Education teams	Education teams are responsible for moderating use of GenAI in learning environments and monitoring impacts on learner outcomes and assessments.

9. Related Documents

9.1 This policy should be read in conjunction with the following related documents:

a. Academic Integrity Policy
b. Academic Integrity Procedure
c. Assessment Policy
d. Acceptable Use of Information Technology Policy
e. Information Security Policy
f. Student Conduct and Discipline Procedures Manual
g. Student Conduct and Discipline Policy
h. Manage Artificial Intelligence (AI) and Machine Learning (ML) Activities Procedure

9.2 This policy is also subject to the following government publications:

a. Australia's Artificial Intelligence Ethics Framework
b. The Australian Framework for Generative Artificial Intelligence in Schools
c. NSW Government AI Ethics Policy
d. NSW Government AI Assurance Framework

10. Contacts

Accountable Officer	Chief Product and Quality Officer and Chief Information Officer
Responsible Officer	Director Educational Quality

11. Document History

No	Effective	Approved by	Amendment
1	19 JULY 2024	Chief Product and Quality Officer	New.

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